IN THE DISTRICT COURT AT LA HELD ON WEDNESDAY THE 26TH DAY OF MARCH, 2025 BEFORE HER WORSHIP ADWOA BENASO ASUMADU-SAKYI, SITTING AS MAGISTRATE

SUIT NO: A2/28/22

JESSE YANYI-AMPAH KWAKU BO
PLOT NO. E 19/71/3,
2ND HOSPITAL LINK,
BAATSONA-ACCRA >>> PLAINTIFF

VRS.

SNS CONSTRUCTION AND TRADING LIMITED
P.O.BOX CT10441,
CANTOMENT-ACCRA >>> DEFENDANT

PARTIES:
Plaintiff present
Defendant represented by Hassan Wehbe
LEGAL PRESENTATION: Stanley Boye-Quaye for the Defendant

JUDGMENT

INTRODUCTION

The Plaintiff filed this instant suit on the 10th of May, 2022 against the Defendant and prayed for the following reliefs;

1. To pay Two (2) months' salary of each of the Five (5) years plaintiff worked with the company.

2. To pay one (1) month leave allowance on each of the Five (5) years.

3. To pay all accumulated salary due plaintiff from November, 2021 to date.

4. To provide certificate/receipt or documents in respect of the 17% SSNIT withholdings for all these years of service.

5. Punitive Cost for the wrongful termination and this action.

The Plaintiff sued two other plaintiffs but on the 21st of June, 2022 the court struck out the names of the second and third defendants as parties to the suit. The Plaintiff's amended the writ of summons filed on the 19th of May, 2022 without leave of the court was struck out pursuant to Order 3 rule 9 of the District Court rules (2009) C.I 59 on the 21st of June, 2022 and this court will not consider same in this judgment.

The Defendant filed its statement of defence on the 4th of July, 2022 and both parties were ordered to file their witness statements on the 26th of July, 2022. The Plaintiff filed his witness statement and that of his witness on the 6th of October, 2022 and the Defendant filed its witness statement on the 9th of August, 2022. Hearing commenced on the 27th of March, 2023 and was completed on the 15th of November, 2024.

PLAINTIFF'S CASE

The Plaintiff's case is that he was employed as a site engineer by the Defendant Company in the year 2017 till October 2021. He states that he became a permanent worker of the Defendant Company after working with for over three years pursuant to the rules of the Defendant Company. He states that he carried out his duties diligently and with outmost efficiency. He further states that anytime there is no construction works going on he will proceed on leave and would be called back

when the need arises. He states that he was asked to proceed on leave on the 14th of October, 2021 and that he would be called back when his services were needed. He also states that the Defendant company refused to call him back for no reason and as a result he gave a formal notice dated the 26th of January, 2022 and demanded his benefits due him. The Defendant company however terminated his employment per a letter dated the 11th of February, 2022 and in the said letter stated a scanty amount as his compensation package. He further states that during his employment period the Defendant Company has been withholding 17% tax on his salary. He was also to be paid two months' salary of each year of service, one month leave on each of the year worked and also an accumulated salary from November, 2021 till date of termination of his appointment. He further states that his termination was wrongful and unlawful and that it has caused him so much inconvenience and hardship. He states that it is clear that the Defendant Company has intentionally refused to pay him what is due him and unless compelled by this court they will not pay the money he is entitled to.

DEFENDANT COMPANY'S CASE

The Defendant Company's case is that the Plaintiff was engaged from time to time for a few months and as and when it had a job for the Plaintiff and when he completed the job and he was paid his services were disengaged. The Defendant Company states that the Plaintiff never worked for a continuous period of 6 months which means he was never a permanent worker and as such the issue of leave did not arise in his case. The Defendant company states that it acknowledges receipt of the letter the Plaintiff wrote to it but is of the opinion that the plaintiff is not entitled to any of the benefits he is claiming. It goes on to state that the letter it wrote to the Plaintiff was a formal severance package which the Plaintiff rejected. The Defendant Company states that the Plaintiff is not entitled to any of the reliefs it is seeking from the court.

DISCUSSION OF THE LAW

The law is trite that a party who asserts a fact assumes the responsibility of proving same and thus the burden of producing evidence as well as the burden of persuasion is therefore cast on that party and the standard required is provided for by the virtue of sections 10,11 and 12 of the Evidence Act, 1975 (NRCD 323). The above stated provisions have received judicial blessings by the Supreme Court who has pronounced on them in the past to be the nature and standard of proof in civil cases.

This position of the law has been reiterated in the case of **Ackah v. Pegrah Transport Ltd And Others [2020] SCGLR 728** where in unanimously dismissing an appeal, the Supreme Court held as follows:

> "It is a basic principle of the law on evidence that a party who bears the burden of proof is to produce the required evidence of the facts in issue that has the quality of credibility short of which his claim may fail. The method of producing evidence is carried and it includes the testimonies of the party and material witnesses, admissible hearsay, documentary and things (often described as real evidence), without which the party might not succeed to establish the requisite degree of credibility concerning a fact in the mind of the court or tribunal of fact such as a jury. It is trite law that matters that are capable of proof must be proved by producing evidence so that on all the evidence a reasonable mind could conclude that the existence of the fact is more probable than its non-existence. This is a requirement of the law on evidence under sections 10(1) and (2) and 11(1) and (4) of the Evidence Act, 1975 (NRCD 323)".

See the case of Ababio v. Akwasi IV [1994-1995] GBR 774.

The Court has a duty to examine the evidence on record and determine whether the Plaintiffs have met the burden of proof. It is settled law that he who alleges must prove his case on the strength of his own case. This principle was enunciated in the case of **Owusu v. Tabiri and Another [1987-88] 1 GLRR** as follows:

> "It was a trite principle of law that who asserted must prove and win his case on the strength of his own case and not the weakness of the defence".

ISSUES FOR DETERMINATION

I have set down the following issues down as issues for determination;

1. Whether or not the Plaintiff was a casual or temporary worker of the defendant company.
2. Whether or not the Defendant company should be ordered to pay 1 (one) month leave on each of the six (6) years.
3. Whether the Defendant should be ordered to pay the Plaintiff's accumulated salary from November 2021 to date.
4. Whether or not the Plaintiff was wrongfully terminated.
5. Whether or not the Defendant Company should be ordered to provide certificate/receipts or documents in respect of the 17% withholding tax for all these years of service and all documents pertaining to his SNNIT contribution.

The first issue to be determined is whether or not the Plaintiff was a casual or temporary worker of the defendant company.

The law on employer employee relationships has been laid down in the Labour Act 2003 (Act 651). The Plaintiff's case is that although he was not given an employment

contract, due to him working for a continuous period of six months that makes him a permanent worker pursuant to Section 75 the Labour Act, 2003 (Act 651). Section 75 of Act 651 provides as follows;

> "A temporary worker who is employed by the same employer for a continuous period of six months and more shall be treated as a permanent worker."

In the case of Sebastian Dziasu and 92 Others v. Ghana Breweries Ltd [2007-2008] SCGLR 593, the Supreme Court per Adinyira JSC, held as follows:

> "No person shall be engaged for more than 6 months basis and that after 6 months such a person shall be deemed to have become permanent."

Section 78 of Act 651 also provides the definition of casual worker as follows: "casual worker" means a worker engaged on a work which is seasonal or intermittent and not for a continuous period of more than six months and whose remuneration is calculated on a daily basis."

In order to answer the question of whether or not the Plaintiff was a casual or temporary worker of the defendant company the question of whether or not the Plaintiff worked with the Defendant Company for a continuous period of six months and thus either became a permanent worker or casual worker as provided for under section 75 and 78 of Act 651 must be answered.

The Plaintiff entered the witness box and relied on his witness statement which was adopted as his evidence in chief. I will reproduce the relevant portions of the witness statement as follows;

2. I worked for the defendant between 2017 February to October 14, 2021.

5. That I worked for the defendant as construction manager and site supervisor at KPONE (Kany Investment Project), Spintex (Britannica) and Tema (Wesco Investment) at Tessano (office renovation) and at Dowulo (Compu-Ghana) between 2017 to 2021 October 14th.

The Defendant denied this assertion and contends the Plaintiff was a temporary staff as opposed to permanent staff. Section 78 of Act 651 also defines a temporary worker as a worker who is employed for a continuous period of not less than one month and is not a permanent worker or employed for a work that is seasonal in character.

This is what was said in the witness statement of the Defendant's witness which was adopted as his evidence in chief as follows;

4. The plaintiff was irregularly engaged as a part-time worker by the Defendant.

6. The Plaintiff was engaged only from time to time, for a few months, as and when the defendant had a job which met his competence and was dis engaged whenever he completed the task.

7. The Plaintiff worked for one, two, three or four months at a time for the defendant, at a project site.

8. He was never engaged for the duration of the project but only for the period it took to perform the task that met his competence.

9. The Plaintiff got paid, in cash, for the period he worked.

10. That the plaintiff went away whenever he completed his assigned job and was invited again, if he was available, when the defendant got a fresh contract which required his services.

A careful perusal of the record clearly shows that the Plaintiff was not given a contract of employment which would have stated in clear terms the rights and obligations of the parties. He admitted to this in his witness statement as follows;

3. That the defendant refused to meet the duties to furnish me with a contract of employment as stated in the Labour Act 2003 (Act 651) section 9(f).

4. That several attempts to have a contract of employment was denied me.

The Plaintiff was also cross examined by Counsel for the Defendant Company on the 27th of March, 2023 and this is what happened;

Q. I put it to you that you don't have proof that you worked for the Defendant for 5 years.
A. I have given receipts to that effect and termination of employment.

This receipt the Plaintiff is talking about is Exhibit A series which are copies of the receipts of the payments the defendant company made for the services of the Plaintiff and receipts of the salary paid by the Defendant Company to the Plaintiff.

I have carefully perused Exhibit A series and the receipts are for the salary for the months of March, April, May, June, August, September, October, November and December in the year of 2017. Unfortunately there was a break in the payment of

salary from June to August and thus the 6 months exception under section 75 of Act 651 does not come into play in this case.

The law is that an employee must be employed for a continuous period of six months before he can be accorded the status of permanent worker. Since the Plaintiff failed to tender into evidence his salary for the month of July, 2017 he unfortunately falls short in respect of this exception.

The Plaintiff was cross examined on this fact on the 27th of March, 2023 as follows;

> Q. Do you have any proof you worked for the Defendant for 5 years
> A. Yes
> Q. Kindly produce the proof
> A. As stated in Exhibit A, it shows the first payment I received from the company. The main work started in 14-3-2012 but because it wasn't the full month I was paid half and there was no receipt attached to it. From the evidence provided by the Defendant with the letter of termination of employment given to me in February, 2021 I was employed from 2o21 to 2021. The receipts covering my salary spans over a year.

This answer by Plaintiff above does not reflect the true state of facts as the evidence must be to the effect that there was a continuous employment for 6 months without any breaks and that was not the case in the instant case.
It is also settled law that documentary evidence should prevail over oral evidence. Thus, where documents supported one party's case as against the other, the court should consider whether the latter party was truthful but with faulty recollection.
See the cases of Mrs. Christiana Edith Agyakwa Aboa v. Major Keelson (Rtd.) and Okyeame Yima, Teye Timothy Doku v. Major Keelson (Rtd.) [2011] 37 G.M.J 64.

It is trite that whenever there is in existence a written document and conflicting oral evidence, the practice of the courts is to lean favourably towards the documentary evidence especially if it was authentic.
See the case of Duah v. Yarkwa [1993-1994] GLR 217

Unfortunately, the documentary evidence tendered into evidence by the Plaintiff does not support his case and as such his documentary evidence will not prevail in this case.

Exhibit A series proves that the Plaintiff was employed by the Defendant Company to work for it for short periods of time within the year 2017 which was for the months of March to June and August to December. Unfortunately this goes to support the case of the Defendant that the Plaintiff was engaged only from time to time, for a few months and not for a continuous period of six months.

The Plaintiff also tendered into evidence Exhibit H which he claims was a letter given to him by the director of the Defendant Company to proof of the direction of his work from 2017 to 2021.

I have carefully read Exhibit H and I will reproduce the relevant portions of the letter;

> This letter is an official notice regarding your regular absenteeism to your duties in last 1 month. We have received a complaint that you haven't intimated to your superiors and subordinates regarding your absence, it will be treated as violating company rules and regulations.

> This kind of behaviour of yours resembles the complete irresponsibility and treat this letter as a final warning letter.
>
> Kindly treat this matter with all the urgency and a copy of this letter will be kept in office records for future reference.

It is obvious that Exhibit H does not make mention of the Plaintiff's time he worked in the Defendant company as being claimed by the Plaintiff and this court will not hold as such.

It is unfortunate that the Plaintiff also failed to attach an employment contract which would have gone to support his case and assist the court to determine exactly when he was employed and the terms and conditions attached to his employment in the Defendant Company. The Plaintiff admitted this fact during his cross examination as follows;

> Q. Do you have any contract of employment with the Defendant?
> A. No because the employer refused to give me a contract even though I was qualified. They refused regardless of the numerous engagements with them contrary to the Labour Act they failed to give a contract.

From the discussion above this Court finds that, Plaintiff's employment relationship with the Defendant Company fits the description of casual workers as envisaged by the Labour Act, 2003.

I must also state that the Plaintiff called Mr. Effah Attah as a witness to testify on his behalf on the 13th of June, 2024. He relied on his witness statement as his evidence in chief and this is what he had to say;

2. I know the plaintiff as the site manager and supervisor to all my works.

3. That the plaintiff is the representative of the defendant on site.

4. That the plaintiff measures work done and prepare payment at the end of the week.

5. That my work span a duration of between six (6) to four (4) months.

6. That the director of the defendant Jad Shiraani presented the plaintiff to me as the site manager.

7. I work at KPONE KANY INVESTMENT as block and plaster sub-contractor between 2017 July to 2018 January.

8. That I work for SNS CONSTRUCTION at Spintex Britanica 2019, January to April-2019.

9. That the plaintiff supervisor all construction works on site.

He was cross examined by Counsel for Defendant and although Plaintiff's witness stated that he had proof of the fact that the Plaintiff was the site manager and supervisor of all his works, a careful perusal of the record of proceedings clearly shows that wasn't the case. Counsel for Defendant continued with his cross examination and this is what ensued:

Q. Read paragraph 2 of your witness statement

A. The witness reads paragraph 2 of the witness statement to the hearing of the court

Q. Do you have any proof of that?

A. Yes

Q. I put it to you that you do not have any proof and the Plaintiff has not made any such claim

A. I have proof

All Plaintiff's witness did was to enter the witness box and repeat his claim without tendering into evidence any document in support of his testimony and this does not satisfy the burden on him. His testimony clearly did not in any way help the case of the Plaintiff.

In the case of Klah v. Phoenix Insurance Company limited [2012] SCGLR 1139, the Supreme Court held as follows:

> "Where a party makes an averment capable of proof in some positive way in some positive way e.g. by producing documents, description of things, reference to other facts, instances and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true."

See the case of Majolagbe v. Larbi [1959] GLR 190.

It is important to note that the Plaintiff's witness who was called to corroborate the plaintiff's testimony rather contradicted Plaintiff's testimony when he was being cross examined. This is what he said:

> Q. I put it to you that the statement in paragraph 7 that you worked at Kpone Kany investment as block and plaster contractor between July 2017 and January 2018 is false because the Plaintiff's own exhibit 12 states that you worked for only July and August 2017.
> A. It is true

In assessing the balance of probabilities, all the evidence adduced by the Plaintiff or Defendant must be considered and the party in whose favour the balance tilts is the person whose case is the more probable of the rival version and is deserving of a favourable verdict.
See Takoradi Flour Mills v. Samira Faris [2005-2006] SCGLR 882 at 900.

In this case, the evidence is clear that the Plaintiff and his witness on the balance of probabilities proved that his is work was seasonal or intermittent, and although he was paid on a monthly basis, he failed to prove that he was paid for a continuous period of six months.

The next issue to be determined is whether or not the Defendant company should be ordered to pay 1 (one) month leave on each of the six (6) years.

Part X of Act 651 provides special provisions relating to temporary and casual workers. Section 75(2) of Act 651 which is under Part X provides as follows:

> "Without prejudice to the terms and conditions of employment mutually agreed to by the parties, the provisions of this Act in respect of minimum wage, hours of work, rest period, paid public holidays, night work and sick leave are applicable to a contract of employment with a temporary worker."

The rights of a temporary worker are thus clearly spelt out in section 75(2) of Act 651 to accord with the requirement that temporary workers are to benefit from the rights accorded permanent workers such as minimum wage, hours of work, rest period, paid public holidays, night work and sick leave.

As already determined by this court there is no evidence before this court to suggest that, at the date of the Writ being filed 10th May, 2022, Plaintiff had acquired the statute of permanent employee.

That being said he was a temporal worker and thus was entitled to the rights afforded temporary workers under section 75(2) of Act 651.

It is important to note that the Plaintiff does not contend that throughout the periods that he worked with the Defendant Company he was not given an opportunity to enjoy his annual leave neither was he paid the monies in lieu of leave he did not enjoy.

In the Plaintiff's statement of claim he admitted this fact as follows;

10. That it has often being the norm that when there is no construction on going, the plaintiff will be ask to proceed on leave and called back when the need be.
11. That I was on 14th October, 2021 I was asked again to proceed home and will be called which I obliged since it has been the practice; however the defendants refused to call me (plaintiff) back for no reasons stated.

The Defendant Company stated in its statement of defence that since the Plaintiff was not a permanent worker the issue of leave does not arise. This is what was stated;

1. That in further response to above paragraphs, defendant will say that the Plaintiff has never been a permanent worker with the defendant so the issue of leave does not arise.

This notion by the Defendant is entirely wrong in accordance with section 75(2) of Act 651.

Since the Plaintiff admitted he was asked to proceed on leave whenever his services were not needed by the Defendant Company that issue is no longer was in contention.
This notwithstanding, there is also no evidence on record that the Plaintiff was not paid when he was on leave and he has the burden to proof that he was not paid by the Defendant Company during the period when he was on leave but a careful perusal of the record of proceedings it is clear that he failed to meet the burden on him. I have also carefully read the testimony of the Plaintiff's witness and his testimony is silent on this relief. As already discussed the Plaintiff failed to attach his letter of employment which would have assisted the court on this issue.

It is trite that for the Plaintiff to satisfy the evidential burden he must lead sufficient evidence such that on a preponderance of probabilities, the existence of the facts upon which their claim is premised is more probable than its non-existence. See the case of Ackah v. Pergah Transport Limited and Others (supra).

Unfortunately all the Plaintiff and his witness did was to enter the witness box and repeat his assertions against the Defendant Company which falls short of the burden

of proof on him. See Klah v. Phoenix Insurance Company Limited (supra) and Majolagbe v. Larbi (supra).

Just entering the witness box and repeating his assertions does not meet the burden and as such I hereby hold that the Plaintiff has failed to establish that he was not paid for every 1 (one) month leave on each of the six (6) years he was home.

The third issue to be determined is whether the Defendant should be ordered to pay the Plaintiff's accumulated salary from November 2021 to date.

The evidence adduced before this court is to the effect that the Plaintiff was a temporary worker who did not achieve the status of a permanent worker which means that the Defendant engaged the Plaintiff from time to time for a few months as and when his services were needed and was disengaged when he completed the work he was required to undertake.

In order to succeed on this issue the Plaintiff must prove that he was still paid by the Defendants Company even when his services were not needed from the period of November 2021 till date.

The Plaintiff was cross examined on the 27th of March, 2023 by Counsel for the Defendant Company and all he did was to repeat his assertions without offering any corroborative evidence. This is what he said;

> Q. I put it to you that you are not entitled to earn salary from November, 2021 to date
>
> A. I'm entitled

It has already been concluded that the Plaintiff was a temporary worker and that he was paid for his services as and when his services was needed by the Defendant Company. It is the case of the Plaintiff that he was asked to proceed on leave on the 14th of October, 2021 and that his employment was terminated on the 11th of February, 2022. The Defendant Company contends that it terminated the employment of the Plaintiff on the 11th of February, 2022 and as such the Plaintiff is not entitled to this relief.

Unfortunately, there is no evidence on record which proves that the Plaintiff's services were engaged in the month of November 2021 or the in the subsequent months that followed. There is also no evidence on record that the Plaintiff was still paid when he was on leave, therefore having failed to prove this, the Plaintiff therefore fails on this issue.

All the Plaintiff did was to enter the witness box and repeat his assertions against the Defendant Company and this does not meet the burden placed on it. See the case of Klah v. Phoenix Insurance Company Limited (supra).

The fourth issue to be determined is Whether or not the Plaintiff was wrongfully terminated.

This Court takes notice of the fact that, the since the Plaintiff is claiming that he was wrongfully terminated, it is his duty to prove to the court that by the terms of existing statutory provisions the termination by the Defendant was wrongful. The principle on this is provided in the case of Morgan and Others v. Parkinson Howard Limited [1961] GLR 68 in which Ollenu J (as he then was) stated at page 70 as follows:

> "In a claim for wrongful dismissal, it is essential that the Plaintiff should prove the terms of his employment and then prove either that the determination of the employment is in breach of the terms of his agreement, or that the determination is in contravention of the statutory provisions for the time being regulating employment. His claim cannot succeed if he fails to satisfy the Court on these points."

This position of the law was adopted by the Supreme Court in the case of Kobi v. Ghana Manganese Co. Ltd [2007-2008] SCGLR 771 at page 7896 where Ansah JSC stated as follows:

> "The issues agreed upon for trial, were whether or not the termination of the Plaintiff's was wrongful and illegal and whether or not the Plaintiffs were entitled to their claims. This being an action for damages for wrongful dismissal, each Plaintiff assumed the burden of proving the terms of his employment; that the determination was in breach of the terms of the agreement, or in contravention of statutory provisions for the time being regulating employment. If a Plaintiff failed to satisfy the Court on these points, his or her claim cannot succeed."

In applying the principles in the authorities referred to above to the instant case, it is my view that the instant action being an action for wrongful termination of appointment the Plaintiff herein assumes the burden of proving to the Court that the termination of his employment was is in breach of the statutory provisions for the time being regulating employment since there was no employment contract given to the Plaintiff upon his employment. This court will therefore, have to find out from the evidence before it whether the Plaintiff has been able to satisfy those principles in the instant case.

The Plaintiff had the following to say in his witness statement which was adopted as his evidence in chief:

2. That my employment was unfairly terminated after several letters written to the defendant as shown from reading exhibit 13 to 16.

The Plaintiff tendered into evidence Exhibit E which is also Defendant's Exhibit 1, and this is the letter of termination from the Defendant Company dated the 11th of November, 2022. He was then cross examined on this fact and this is what he had to say;

> Q. Your employment with the Defendant was lawfully terminated
> A. I wasn't lawfully terminated I had to send 3 letters before they even decided to talk to me. Exhibit A shows the deduction of tax on it and that was after I had discussion with the CEO and director. The other payments were not stated. The amount paid to me as my 1st salary is the same amount on the other receipts of salary payment.

The Defendant Company tendered into evidence Exhibit E which was a letter offering the Plaintiff a formal severance package after the Plaintiff wrote a letter to the Defendant Company making demands it found strange.

I will reproduce the relevant portions of Exhibit E as follows:

TERMINATION OF EMPLOYMENT

This is to inform you that Management of SNS Construction and Trading Limited accepts your offer of three (3) months' salary for effective termination of any

working relationship that exists between you, MR. JESSE YANYI-AMPAH KWAKU BO and SNSN Construction and Trading Limited.

As stated above, an amount of GH¢ 9,000 totalling your 3 months' salary will be paid to you and this payment should and must be taken as your severance package for the period you have been with SNS Construction and Trading Limited.

Section 15 of Act 651 provides the grounds for termination of employment as follows;

(a) by mutual agreement between the employer and the worker;

(b) by the worker on grounds of ill-treatment or sexual harassment;

(c)) by the employer on the death of the worker before the expiration of the period of employment;

(d) by the employer if the worker is found on medical examination to be unfit for employment;

(e) by the employer because of the inability of the worker to carry out work due to

(i) sickness or accident; or
(ii) the incompetence of the worker; or
(iii) the proven misconduct of the worker.

Section 17 of Act 651 also provides the time period each employer is to give to its employee when terminating his or her contract. This is what is provided;

A contract of employment may be terminated at anytime by either party giving to the other party,

(a) in the case of a contract of three years or more, one month's notice or one month's pay in lieu of notice;

(b) in the case of a contract of less than three years, two weeks' notice or two weeks' pay in lieu of notice; or

(c) in the case of contract from week to week, seven days' notice

From the above the Defendant Company is to comply with the provisions of Act 651 when terminating the employment of an employee it did not provide an employment contract to.

In the case of Boyefio v. NTHC Properties Ltd. [1996-1997] SCGLR 531 at 546 the Supreme Court speaking through Acquah JSC (as he then was) succinctly stated that:-

> "for the law is clear that where an enactment has prescribed a special procedure by which something is to be done, it is that procedure alone that is to be followed."

See the case of Tuarley v. Ababio [1962] 1 GLR 411, SC.

The circumstances of this case clearly indicates that the Plaintiff was a temporary worker of the Defendant Company who worked with the Defendant Company from the year 2017 to 2021 which is a five year period and thus pursuant to section 17 of

Act 651, the Defendant Company should have given a one months' notice or one months' lieu of notice. Exhibit E in effect is seeking to end the working relationship of the Plaintiff and offers a severance package of GH¢ 9,000 which was his three months' salary.

I must also state that the testimony of Plaintiff's witness was silent on this fact and in no way corroborated the testimony of the Plaintiff on this relief.

It is clear from the above that the Defendant Company complied with provisions of section 17 of Act 651 by going above and paying the Plaintiff an amount of GH¢ 9,000.00 which was his three months' salary. I hereby hold that the Plaintiff's employment termination was lawful and as a result is not entitled to punitive cost.

The last issue to be determined is whether or not the Defendant Company should be ordered to provide certificate/receipts or documents in respect of the 17% withholding tax for all these years of service and all documents pertaining to his SNNIT contribution.

The Plaintiff is seeking for the Defendant Company to be ordered to provide certificates/receipts or documents in respect of the 17% withholding tax for all these years of services. It has already been established that the Plaintiff was not given an employment contract which would have provided the court the rights and obligations the parties are entitled to.

Unfortunately there is no evidence on record that it was a policy of the Defendant Company to pay 17% tax on its causal workers' salaries. The Plaintiff bears the burden to prove that the Defendant Company deducted 17% of his salary and that he was entitled to it after he was let go.

The Plaintiff failed to tender into evidence documents to buttress his assertion that he made SNNIT contributions. The Plaintiff was cross examined on this assertion and this is what ensued during cross examination;

> Q. And did you make any SSNIT contribution
> A. The Defendant was to do the contribution on our behalf and furnish us with reports which they refused

> Q. I put it to you that you did not make any SSNIT contribution
> A. Per the information the Defendant gave deduction were made from our salary to cater for SSNIT and taxes

Unfortunately the answers provided by the Plaintiff in his evidence in chief do not corroborate his testimony. The Plaintiff would have succeeded if he tendered into evidence his employment contract as same would have supported his case. Just entering into the witness box and repeating his assertions against the Defendant Company does not meet the burden on him.

Having failed to prove this assertion this court will not order the Defendant Company to provide certificate/receipt or documents in respect of the 17% withholding tax for all his years of service.

CONCLUSION

The Plaintiff's case fails in its entirety as he could not meet the burden of proof on him and judgment is entered against him.

SGD

H/W ADWOA BENASO ASUMADU-SAKYI

MAGISTRATE